

24STCV07715 24STCV07715

County: los-angeles

Division: Civil Law and Motion

Department: 508

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Case Number: 24STCV07715 Hearing Date: July 16, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

SHILOH PARKER,

Plaintiff,

vs.

HALEY FREIBERGER, et al.,

Defendants.

Case No.:

24STCV07715

Hearing Date:

July 16, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF SHILOH

PARKER'S MOTION TO MODIFY ORDER AND JUDGMENT

Background

Plaintiff

Shiloh Parker ("Plaintiff") filed this action on March 27, 2024 against Defendants Haley Freiburger and Kyle Freiburger (jointly, the "Freibergers").

The complaint

alleges causes of action for (1) "fraud by intentional misrepresentation," (2) "fraud by negligent misrepresentation," (3) "breach of good faith and fair dealing covenant," (4) violation of Business and Professions Code section 17200, et seq., and (5) breach of oral contract.^[1]

On

October 22, 2024, "the Court grant[ed] the Freibergers' motion to quash on the grounds that the Court lacks personal jurisdiction over the Freibergers." (Order 10/22/24, 15:20-21.)

Subsequently,

Plaintiff moved "for an Order to deem all orders/tentative rulings issued by Judge Beaudet after October 4, 2024 as void/invalid," as well as "an Order staying all the proceedings and decision-making in this matter until Plaintiff's Motion To Reconsider its order dated October 22, 2024 [sic], granting Defendants' Motion to Quash Summons due to legal error and abuse of discretion, pursuant to this Court's discretion and as matter of law." (Order 12/3/24, 2:1-2.) The Court "denie[d] (a) Plaintiff's motion 'for an Order to deem all orders/tentative rulings issued by Judge Beaudet after October 4, 2024 as void/invalid,' and (b) Plaintiff's 'motion to reconsider.'" (Order 12/3/24, 13:1-3.) The Court then signed the proposed judgment submitted by the Freibergers on October 31, 2024. (See Order 12/3/24, 13:3-4; Judgment 12/3/24.)

Thereafter,

Plaintiff moved to vacate or set aside the judgment the Court signed on December 3, 2024. However, the Court denied the motion on June 4, 2026.

Plaintiff now moves for an Order to modify the Court's Order dated June 4, 2026, and the judgment from December 3, 2024 pursuant to Code of Civil Procedure section 128, subdivision (a)(8). The Freibergers, as Specially Appearing Defendants, oppose. Plaintiff replied.

Discussion

Plaintiff moves under Code of Civil Procedure section 128, subdivision (a)(8), which states that "[e]very court shall have the power to ... amend and control its process and orders so as to make them conform to law and justice."

The crux of Plaintiff's argument is that the Court's decision on June 4, 2026, which denied Plaintiff's motion to set aside the Court's previous judgment, "exercised 'judicial discretion' to grant[] defendants' request for a judgment when the court lacked personal jurisdiction. However, the court did not cite any law that allows a court to exercise judicial discretion when the court lacks fundamental jurisdiction (personal jurisdiction) to issue a judgment." (Mot., 2:23-27.) Plaintiff contends that the decisions are not founded in law and asserts that, at the hearing, she asked the Court to cite the law the tentative order was based on, and the Honorable "Teresa A. Beaudet repeated that she will not be doing no such thing." (Mot., 3:13.)

Plaintiff seeks to litigate her motion under Code of Civil Procedure section 128, subdivision (a)(8), but this statute does not provide Plaintiff with the ability to relitigate an issue already decided on the merits. Plaintiff's motion actually acts as an improper motion for reconsideration or renewal under Code of Civil Procedure section 1008. A motion for reconsideration is proper "[w]hen an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Code Civ. Proc., § 1008, subd. (a).) Whereas for a renewed motion, "[a] party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law..." (Code Civ. Proc., § 1008, subd. (b).)

Here, Plaintiff has not identified a new factual circumstance or law that demonstrates how the Court's previous judgment and Order should be reversed. Plaintiff contends that the Court's June 4, 2026 Order did not cite any law; to the contrary, the Order cited Code of Civil Procedure section 1032, subdivision (a)(4) to support the judgment in favor of the Freibergers as a "prevailing party" because they were "a defendant in whose favor a dismissal is entered."

Plaintiff's reply asserts that the Freibergers' opposition was improperly served because she never consented to electronic service. (See Code of Civ. Proc., § 1010.6, subd. (c), Cal. Rules of Court, rule 2.251(c)(3)(B).) However, Plaintiff served her moving papers on the Freibergers electronically. Self-represented litigants must affirmatively consent to electronic service; however, Plaintiff's choice to benefit from and initiate electronic service on the Freibergers, while simultaneously contending that the Freibergers cannot serve Plaintiff electronically creates an equitability issue. Even without the opposition, Plaintiff's motion is still procedurally improper. Plaintiff seeks to relitigate the same issues on which the Court issued final rulings. Accordingly, the motion is denied.

Conclusion

Based on the foregoing, Plaintiff's motion to vacate or set aside the judgment signed on December 3, 2024 and the Order from June 4, 2026 is DENIED.

Plaintiff is ordered to give notice of this Order.↻↻

DATED: July 16, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court

[1] The Court notes

that the caption page of the complaint appears to reference a cause of action for “disgorgement,” but the remainder of the complaint does not appear to contain any such cause of action.